

-
File No.: EXP202205351

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 09/05/2022, a written submission was received by this Agency from A.A.A. (hereinafter, the complainant) regarding a possible breach of the provisions of personal data protection regulations.

The reasons for the complaint are as follows:

"Someone has been impersonating my identity online for some time now, specifically on a dating site, www.pasion.com. Whenever I have seen the ad, I have asked the site to remove it; they have done so quickly, but this person keeps posting it over and over again. This last time, they posted photographs of me, which I assume they took from Facebook. In the ads, sometimes they say they are looking for me, and other times they impersonate me, and this last time they posted personal photos. [...]"

Attached is the following documentation:

- Screenshot of the ad published on ***DATE.1, section "****SECTION.1", titled "A.A.A.!!!", stating "(...)!! Hi, I am looking for A.A.A., works at (...), is (...) The times we were together were at (...) (...) Age XX years."
- Screenshots from ***DATE.2 of the ads in question, with the following content:
 - o Section "****SECTION.1" "2 days ago. A.A.A.. I am (...) (...) Age XX years." The ad is accompanied by 5 photographs (image 2/5 shows a photograph of the complainant).
 - o Section "****SECTION.1" "11 days ago. B.B.B.. I am (...) (...). Do you find it exciting to do it in (...)?!? (...) Age XX years." Attached are photographs.
 - o Section "****SECTION.1" "****DATE.2. C.C.C.. (...) (...) Age XX years." The ad is accompanied by a photograph of the complainant.

SECOND: On 10/05/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

Requested from the company MUBA ONLINE, S.L., responsible for the website <https://pasion.com>, where the fraudulent ads are published, regarding the internet addresses from which the complained ads were published, on 14/05/2022, a letter was received by this Agency from this entity providing the requested IP addresses.

Requested from TELEFÓNICA DE ESPAÑA, S.A.U., operator of these IP addresses, information about the ownership of the assignment of these IPs at the time the ads were published, on 03/06/2022, a letter was received by this Agency from this entity informing that the owner at the time the complained ads were published is D.D.D., with NIF ***NIF.1 and address at ***ADDRESS.1.

FOURTH: On 20/12/2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR.

This initiation agreement, which was notified in accordance with the rules established in the LPACAP by postal notification, was delivered to the complained party on 03/02/2023.

FIFTH: On 07/02/2023, this Agency received a letter from the ALBACETE POLICE STATION requesting a copy of the file after the complained party filed a complaint for possible hacking of their internet line in relation to the alleged infringement of Article 6.1 of the GDPR.

On 15/03/2023, this Agency responded to the request informing them of the actions carried out within the framework of the preliminary investigative actions that led to the opening of the present sanctioning

procedure, by means of the initiation agreement issued by the Director of the Spanish Agency for Data Protection on 20/12/2022.

SIXTH: On 13/02/2023, the complained party submitted a written statement, in due time and form, to this Agency in which they express the following:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/8

“[...]

First.- That I have nothing to do with the insertion of internet advertisements referred to by the claimant A.A.A., a person I do not know at all, nor do I have any relationship with, lacking any animosity to carry out the type of actions attributed to me.

Second.- I have been informed that the holder of the IP address from which the advertisements were inserted is mine or the one assigned to me in my contract, without it being reflected by the Instruction at any moment of the agreement. (...)

Third.- I have also become aware that a wifi address is relatively easy to hack by individuals with a somewhat advanced level of computer knowledge, which is why I believe that my IP may have been used through wifi signal hacking, and in this way, the advertisements could have been inserted with maximum impunity on the internet, through a page that I do not know and do not remember having accessed. (...)

Fourth.- The indications that my IP has been used for these criminal acts or more have led me to contact my telephone operator for a review of the wifi and change of passwords, as I do not know how to increase security against its hacking, which was successfully carried out on February 3 and 4, 2023. [...]

Attached is the following documentation:

- Copy of the ID of the party being claimed and the agreement to initiate the present sanctioning procedure.
- Copy of the complaint filed at the Albacete Police Station on 03/02/2023, regarding a possible hacking of their internet line in relation to the advertisements subject to the claim.

SEVENTH: On 10/03/2023, the instructing body of the procedure agreed to open a period of evidence, considering the claim filed by the claimant and its documentation, as well as the allegations to the agreement to initiate the present sanctioning procedure presented by the party being claimed and the documentation accompanying them.

Additionally, as documentary evidence, assistance was requested from TELEFÓNICA DE ESPAÑA, S.A.U., to obtain information regarding the number and identifying data of the devices that were connected to the IP address ***IP.1 at the time the reported events occurred.

On 31/03/2023, this Agency received a response from the telecommunications company reiterating what was indicated in the framework of the previous investigative actions. Specifically, that “the IP address ***IP.1 was assigned to the line ***TELÉFONO.1 during the relevant periods, which corresponds to the same session for the three relevant periods, and whose details are as follows: - Name and surname: D.D.D. - NIF/CIF: ***NIF.1 - Address: ***DIRECCIÓN.1”.

EIGHTH: On 18/08/2023, the instructing body of the sanctioning procedure formulated a proposal for resolution, in which it proposes that the Director of the Spanish Agency for Data Protection order the filing due to the lack of sufficiently probative elements of the responsibility of the party being claimed in the publication of the advertisements subject to the claim.

This proposal for resolution was notified to the party being claimed in accordance with the rules established in the LPACAP, and was delivered on 18/08/2023, as evidenced by the acknowledgment of receipt in the file. To date, no allegations have been received from the party being claimed.

PROVEN FACTS

FIRST: Publication of advertisements with derogatory and defamatory images and comments about the claimant on the website www.pasion.com between the months of April and May 2022. The content

is as follows:

- Advertisement published on ***DATE.1, in section "****SECTION.1", titled "A.A.A.!!!", stating "(...)!! Hello, I am looking for A.A.A., works at (...), is (...) (...) The times we were together were in (...) Age XX years.

- Advertisement published in Section "****SECTION.1" "2 days ago. A.A.A.. I am (...) (...) Age XX years". The advertisement is accompanied by 5 photographs (image 2/5 shows a photograph of the claimant).

- Advertisement published in Section "****SECTION.1" "11 days ago. B.B.B.. I am (...) (...). Does it excite you to do it in (...)?!? (...) Age XX years". Accompanied by photographs.

- Advertisement published in Section "****SECTION.1" "****DATE.2. C.C.C.. (...) (...) Age XX years".

The advertisement is accompanied by a photograph of the claimant.

SECOND: Identified as the holder of the IP address ***IP.1, from which the advertisements in question are published, is D.D.D., with NIF ***NIF.1 and address at ***DIRECCIÓN.1.

THIRD: On 03/02/2023, the party being claimed filed a complaint for possible hacking of their internet line at the Albacete Police Station.

LEGAL GROUNDS

I

Competence and applicable regulations

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/8

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;"

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them."

III

Lawfulness of the Processing of Personal Data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/8

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances under which the processing of personal data is considered lawful are enumerated in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

Furthermore, Recital 40 of the aforementioned GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of compliance with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract."

IV

Claims Made

This Agency has no record of the respondent having submitted a written statement of claims against the proposed resolution.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/8

The LPACAP regulates in Article 64 the content of the initiation agreement of the sanctioning administrative procedure and indicates that it must contain, at a minimum, the "a) Identification of the person or persons presumably responsible." In this regard, Article 28 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (hereinafter, LRJSP), under the heading "Responsibility" provides in its paragraph 1 that "Only natural and legal persons, [...] who are found responsible for the same by way of intent or negligence, may be sanctioned for acts constituting an administrative infraction."

In the same vein, Article 53.2 of the LPACAP establishes that: "In addition to the rights provided for in the previous paragraph, in the case of administrative procedures of a sanctioning nature, the presumed responsible parties shall have the following rights: (...) b) To the presumption of non-existence of administrative responsibility until proven otherwise."

The initiation agreement of the present sanctioning procedure identified D.D.D., with NIF ***NIF.1, as the presumed responsible party for the facts stated above. The operator of the IP addresses from which the advertisements in question were published, TELEFÓNICA DE ESPAÑA, S.A.U., informed

that the holder at the time of the publication of these was D.D.D., with NIF ***NIF.1 and address at ***DIRECCIÓN.1.

However, in light of the allegations made by the accused party against the initiation agreement and the documentation in the file, the responsibility of the accused party for the reported facts has not been sufficiently proven. The information regarding the ownership of the IP from which the advertisements subject to the complaint were published does not allow for certainty about who made the publications. To the above, it must be added that the accused party has reported a possible hacking of their internet line, as stated in the copy of the police report dated 03/02/2023.

Therefore, by virtue of the principle of the presumption of innocence and the aforementioned Article 28 of the LRJSP, the allegations made by the accused party against the initiation agreement of the present sanctioning procedure were upheld.

Thus, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present sanctioning procedure against D.D.D., with NIF ***NIF.1, as the commission of the infraction of Article 6.1 of the GDPR has not been proven.

SECOND: TO NOTIFY this resolution to D.D.D.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/8

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

938-300823

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es